

Suraj Pratap Singh v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 21 March 2023 · WRIT - C No. - 7811 of 2023 · **Disposed on consent; fresh Clause 8.1 representation to be decided in law.**

HEADNOTE

Writ against a provisional assessment notice, seeking quashing of a 27 June 2006 notification and a decision on a Clause 8.1 representation, was disposed of on consent without entering the merits. The notification challenge was not pressed. The petitioner may file a fresh comprehensive representation before respondent no. 2 within one week, which the authority is to decide strictly in accordance with law, preferably within three weeks.

FACTUAL SUMMARY

Suraj Pratap Singh approached the Allahabad High Court against the State of U.P. and another over a provisional assessment notice dated 31 January 2023. He sought quashing of a notification dated 27 June 2006 and a direction that respondent no. 2 decide his representation under Clause 8.1 of the U.P. Electricity Supply Code, 2005. On 15 February 2023 he asked the Executive Engineer, EUDD, Tagore Town, Allahabad, for the inspection report, site diagram and calculation sheet. His representation dated 19 February 2023 stated that those papers had not been supplied.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1

Fresh representation against provisional assessment left to Clause 8.1

HOLDING

Without advertng to the merits, and on consent, the writ petition is disposed of by asking the petitioner to move, within one week, a fresh comprehensive representation before respondent no. 2, annexing relevant materials and stating his grievance in respect of the provisional assessment notice dated 31.1.2023. If that representation is filed, the authority is to decide it strictly in accordance with law, expeditiously and preferably within three weeks. The prayer to quash notification No. 173/2206-XXIV.P-3-27P/98T,C. dated 27.06.2006 was not pressed, the petitioner stating that his Clause 8.1 representation was still pending. ¶ 1-2

PRINCIPLE TAGS

UP-2005::8.1 The Court did not construe Clause 8.1. On consent it left the petitioner to file a fresh comprehensive representation before respondent no. 2, to be decided strictly in accordance with law, and it declined to examine the provisional assessment. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT NOTICE DATED 31.1.2023

The petition was disposed of without advertng to the merits. ¶ 1-2

NOT DECIDED — CHALLENGE TO NOTIFICATION NO. 173/2206-XXIV.P-3-27P/98T,C. DATED 27.06.2006 AS CONTRARY TO NEMO JUDEX IN CAUSA SUA

The petitioner did not press this relief because his Clause 8.1 representation was still pending. ¶ 1-2

NOT DECIDED — WHETHER THE INSPECTION REPORT, SITE DIAGRAM AND CALCULATION SHEET MUST BE SUPPLIED BEFORE A COMPREHENSIVE REPRESENTATION

The Court did not direct supply of those papers. It left the petitioner to annex relevant materials in a fresh representation. ¶ 1-2

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.